

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Conor O'Shea	Team: Squad #5	CCRB Case #: 201900201	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 12/29/2018 3:03 PM, Saturday, 12/29/2018 3:10 PM	Location of Incident: [REDACTED]	Precinct: 100	18 Mo. SOL 6/29/2020	EO SOL 2/13/2021	
Date/Time CV Reported Sun, 12/30/2018 4:05 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/07/2019 11:01 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. An officer			100 PCT
2. POM Angelo Santaniello	14576	956234	100 PCT
3. SGT Matthew Schiraldi	02447	944991	100 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Manuel Rodriguez	01179	944945	100 PCT
2. SGT Evan Gales	23302	952756	TB DT32
3. DT3 Cory Fink	5236	917625	100 DET

Officer(s)	Allegation	Investigator Recommendation
A.SGT Matthew Schiraldi	Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi used a chokehold against § 87(2)(b)	[REDACTED]
B.SGT Matthew Schiraldi	Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi restricted § 87(2)(b)'s breathing.	[REDACTED]
C.SGT Matthew Schiraldi	Abuse: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi drew his gun.	[REDACTED]
D.POM Angelo Santaniello	Abuse: In the vicinity of § 87(2)(b) in Queens, Police Officer Angelo Santaniello drew his gun.	[REDACTED]
E.POM Angelo Santaniello	Force: In the vicinity of § 87(2)(b) in Queens, Police Officer Angelo Santaniello pointed his gun at § 87(2)(b)	[REDACTED]
F.SGT Matthew Schiraldi	Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi used physical force against § 87(2)(b)	[REDACTED]
G.POM Angelo Santaniello	Force: In the vicinity of § 87(2)(b) in Queens, Police Officer Angelo Santaniello used physical force against § 87(2)(b)	[REDACTED]
H.SGT Matthew Schiraldi	Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi used physical force against § 87(2)(b)	[REDACTED]

Officer(s)	Allegation	Investigator Recommendation
I. An officer	Force: In the vicinity of § 87(2)(b) in Queens, an officer used physical force against § 87(2)(b)	
J. An officer	Discourtesy: At the 100th Precinct stationhouse in Queens, an officer spoke discourteously to § 87(2)(b)	

Case Summary

On December 30, 2018, Sergeant Manuel Rodriguez of the 100th Precinct called IAB and filed this complaint on behalf of recent arrestee § 87(2)(b) generating original log #18-50958. The CCRB received this complaint on January 7, 2019.

On December 29, 2018, at approximately 3:03 p.m., Sergeant Matthew Schiraldi and Police Officer Angelo Santaniello, both of the 100th Precinct's Anti-Crime team, were canvassing in the vicinity of § 87(2)(b) and § 87(2)(b) after a ShotSpotter notification of multiple gunshots in the area. They attempted to stop § 87(2)(b) but he fled on a bicycle and then on foot. At the time § 87(2)(b) dismounted his bicycle, Sgt. Schiraldi allegedly pulled on the hood of § 87(2)(b)'s sweatshirt, thereby choking him and restricting his breathing (**Allegations A–B: Force,** § 87(2)(g) § 87(2)(b) ran to § 87(2)(b) Sgt. Schiraldi and PO Santaniello both drew their guns (**Allegations C–D: Abuse of Authority,** § 87(2)(g) PO Santaniello allegedly pointed his gun at § 87(2)(b) (**Allegation E: Force,** § 87(2)(g) Sgt. Schiraldi and PO Santaniello brought § 87(2)(b) to the ground (**Allegations F–G: Force,** § 87(2)(g) Sgt. Schiraldi allegedly knelt § 87(2)(b) in the head multiple times (**Allegation H: Force,** § 87(2)(g) An officer allegedly pressed § 87(2)(b)'s face into the ground (**Allegation I: Force,** § 87(2)(g) § 87(2)(b)

Sgt. Schiraldi found marijuana and a handgun, which was later determined to be stolen, in § 87(2)(b)'s pants pocket. PO Santaniello arrested § 87(2)(b) (**Board Review 01**) for second-degree criminal possession of a weapon, fourth-degree criminal possession of stolen property, resisting arrest, obstructing governmental administration, unlawful possession of marijuana, two counts of disorderly conduct, and two counts of violating one-way traffic rules. At the 100th Precinct stationhouse, an officer allegedly called § 87(2)(b) a “piece of shit” (**Allegation J: Discourtesy,** § 87(2)(g) § 87(2)(b)

The investigation obtained an NYPD cellphone recording of TARU surveillance footage (**Board Review 02**, summarized at **Board Review 03**), but no other videos. By the time § 87(2)(b) first raised an allegation occurring at the stationhouse, any surveillance footage from cameras at the stationhouse had already expired. The 100th Precinct had not yet begun participating in the BWC program as of the incident date.

Since the incident, Sgt. Schiraldi has been transferred to the Criminal Intelligence Section.

This case was initially closed pending litigation on January 23, 2019, at the request of § 87(2)(b)'s criminal defense attorney. On January 27, 2020, the CCRB determined that § 87(2)(b)'s criminal case had concluded. The investigation then interviewed § 87(2)(b) on February 6, 2020, while he was incarcerated in § 87(2)(b). The CCRB granted his re-open request on March 4, 2020. The COVID-19 global pandemic further delayed the closure of this case.

Findings and Recommendations

Allegation A—Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi used a chokehold against § 87(2)(b)

Allegation B—Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi restricted § 87(2)(b)'s breathing.

It is undisputed that Sgt. Schiraldi and PO Santaniello tried to stop § 87(2)(b) on his bicycle. He eventually fled on foot to § 87(2)(b) and Sgt. Schiraldi and PO Santaniello gave chase. § 87(2)(b) was wearing a hooded sweatshirt.

§ 87(2)(b) (**Board Review 04**) recounted that, once he dismounted his bicycle but before he fled on foot, an officer—identified as Sgt. Schiraldi—grabbed him by the hood of his sweatshirt. This caused the fully-zipped-up sweatshirt's collar to choke § 87(2)(b) on the front of his neck, which restricted his breathing. In concert with his pre-existing asthma condition, the sweatshirt pulling against his neck made § 87(2)(b) feel like he would lose consciousness.

CCRB Case # 201900201

Sgt. Schiraldi (**Board Review 05**) and PO Santaniello (**Board Review 06**) denied that any officer grabbed § 87(2)(b) by the hood of his sweatshirt at any point in apprehending him. They also both testified that the first time either of them made any contact with § 87(2)(b) was on the porch of § 87(2)(b) at the conclusion of the foot chase. They also both testified that Sgt. Schiraldi was the first one out of their vehicle and the first to begin pursuing § 87(2)(b) on foot, as PO Santaniello was driving and had to park the vehicle. As a result, the investigation identified Sgt. Schiraldi as the subject officer.

The investigation identified one on-scene 911 caller, identified only as § 87(2)(b). When the investigation reached him by phone, § 87(2)(b) through his attorney, to provide a statement (**Board Review 07, 08**). § 87(2)(b)'s attorney also noted that he had similarly § 87(2)(b) to provide a statement to the DA's office or § 87(2)(b)'s defense attorney. § 87(2)(b)'s 911 call (**Board Review 09**, summarized at **Board Review 10**) contains no relevant information for this allegation.

NYPD TARU surveillance video (**Board Review 02**) from near the incident location only depicts § 87(2)(b) fleeing on his bicycle across traffic. He and the officers disappear off-screen before he dismounts the bicycle and before they exit their SUV. The video does not capture the foot chase and is therefore not dispositive regarding these allegations.

NYPD Patrol Guide Procedure 221-01 (**Board Review 11**) categorically prohibits the use of a chokehold, which "shall include, but is not limited to, any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air."

§ 87(2)(b)

Allegation C—Abuse of Authority: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi drew his gun.

Allegation D—Abuse of Authority: In the vicinity of § 87(2)(b) in Queens, Police Officer Angelo Santaniello drew his gun.

The following facts are undisputed. Sgt. Schiraldi and PO Santaniello were responding to a ShotSpotter notification for gunshots fired in the vicinity of § 87(2)(b) and § 87(2)(b) Street in Queens when they saw § 87(2)(b) riding his bicycle alone. They attempted to stop him, but he fled on his bicycle and then on foot. Sgt. Schiraldi and PO Santaniello chased him to nearby § 87(2)(b). During the foot chase, but before apprehending § 87(2)(b) Sgt. Schiraldi and PO Santaniello both drew their guns.

§ 87(2)(b), § 87(2)(g)

It should be noted that both officers were not interviewed until more than 18 months after the date of the incident.

Sgt. Schiraldi and PO Santaniello did not remember hearing a specific description of the alleged shooter, but were instead responding just to the initial ShotSpotter alert, which included the number of shots fired and the approximate location. They responded in about a minute. The TARU footage (**Board Review 02**) and its timestamp, coupled with the event documentation from the ShotSpotter alert (**Board Review 12**), shows that the officers were already involved in the vehicle-bicycle chase of § 87(2)(b) before any physical description of the shooter went over the radio.

Sgt. Schiraldi and PO Santaniello recognized § 87(2)(b) as a known member of the 70Gs Bloods gang. PO Santaniello and Sgt. Schiraldi believed that 70Gs Bloods gang members have a roughly equal propensity, compared to other gangs, to commit violent crimes and possess weapons.

PO Santaniello and Sgt. Schiraldi did not remember what they knew at the time of this incident about § 87(2)(b)'s individual reputation or propensity for carrying weapons.

Both Sgt. Schiraldi and PO Santaniello described the area they were in as 70Gs Bloods territory. Sgt. Schiraldi was unable to remember any specific crime conditions of the area at the time of this incident. PO Santaniello described it as a high-crime area with respect to gang-related crime, so much so that the 100th Precinct had set up incident command posts and SkyWatch towers in the area. The two delis near § 87(2)(b) and § 87(2)(b) were a particular hotspot for gang-related violence at the time of this incident.

§ 87(2)(b) (**Board Review 04**) denied biking against the flow of traffic or committing any traffic infractions while biking. However, the TARU footage (**Board Review 02**) confirms Sgt. Schiraldi and PO Santaniello's testimony that § 87(2)(b) was biking against the flow of traffic and fled on his bicycle across traffic. At first, the officers attempted to stop him for the traffic violation of biking against the flow of traffic. They testified that he also committed disorderly conduct once he fled across traffic as they tried to stop him.

PO Santaniello recounted that § 87(2)(b) was biking at a high rate of speed and was apparently doing so "with a purpose." This raised a "red flag" for PO Santaniello, given the proximity in time and place to the ShotSpotter job. § 87(2)(b)'s speed was more suspicious than if he had been traveling at a more "leisurely" pace. PO Santaniello did not remember if § 87(2)(b) was biking towards or away from the shooting location. Sgt. Schiraldi did not remember if § 87(2)(b)'s behavior on the bicycle was suspicious.

§ 87(2)(b)'s gang membership and proximity to the ShotSpotter job in time and location led the officers to believe that he was somehow "involved" in the shooting—whether as the shooter or as the intended victim. The officers also believed that, even if § 87(2)(b) was the intended target, he may have been looking to retaliate with a shooting of his own, which can happen in gang-related shootings. The officers' belief that § 87(2)(b) was "involved" in the shooting contributed to their decision to stop him for the bicycle infraction.

PO Santaniello also recognized § 87(2)(b) from surveillance footage of a recent shooting at a NYCHA complex that he had personally viewed recently before this incident. The footage merely showed § 87(2)(b) running alongside the suspected shooter into the complex before the shooting, and it showed § 87(2)(b) and the suspected shooter running out of the complex together after the shooting before driving away in the same vehicle. Based on the NYCHA footage, PO Santaniello described § 87(2)(b) as an "accomplice" to the NYCHA shooting. PO Santaniello acknowledged that there was no indication in the NYCHA footage, or in the police investigation into the NYCHA shooting as of this incident date, to suggest that § 87(2)(b) was armed during the NYCHA shooting. PO Santaniello did not believe there was probable cause against § 87(2)(b) regarding the NYCHA shooting, and he was not aware of there being any warrant or probable cause I-Card issued for § 87(2)(b) as a result.

PO Santaniello cited the NYCHA shooting, § 87(2)(b)'s gang membership, and his proximity in time and place to the ShotSpotter alert for his belief that § 87(2)(b) was armed and dangerous. This belief caused him to fear for his safety, and so he drew his gun. PO Santaniello had no other reasons for drawing his gun. PO Santaniello did not see any bulges on § 87(2)(b)'s person while chasing him, nor did he see any other visual indications that § 87(2)(b) was armed. PO Santaniello did not see § 87(2)(b) holding any pockets or favoring any side of his body during the foot chase.

However, Sgt. Schiraldi observed that § 87(2)(b) was "favoring" his left side and holding his front left pants pocket during the foot chase. This observation—along with § 87(2)(b)'s gang membership, presence in gang territory, flight from police, the proximity in time and place to the ShotSpotter job, and Sgt. Schiraldi's subjective belief that § 87(2)(b) may have been "involved" in the ShotSpotter shooting—all led Sgt. Schiraldi to believe that § 87(2)(b) had a gun in the pocket he was holding. This caused Sgt. Schiraldi to fear for his safety, which prompted him to draw his

own gun. Sgt. Schiraldi was not able to directly observe the pocket § 87(2)(b) was holding, he could not see if it was sagging or bulging, and he could not see any objects contained in it. Sgt. Schiraldi did not reference the NYCHA shooting above in describing why he drew his gun.

Upon catching up to § 87(2)(b) on the porch of § 87(2)(b) Sgt. Schiraldi observed a bulge in the same pocket § 87(2)(b) had been holding while fleeing. Sgt. Schiraldi believed that the bulge was a gun. After apprehending § 87(2)(b) Sgt. Schiraldi's suspicion was confirmed: he recovered a .32 caliber revolver in the same pocket he had seen § 87(2)(b) holding while fleeing and in which he had seen the bulge. However, Sgt. Schiraldi confirmed that he was not able to see any part of the gun protruding from the pocket while chasing § 87(2)(b).

See **Board Review 13** for a photograph of the revolver recovered from § 87(2)(b)'s pocket. Sgt. Schiraldi and PO Santaniello estimated this gun's size as that of an average human hand, capable of fitting in a pants pocket. § 87(2)(b) had no other weapons on his person.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

“Drawing a firearm prematurely or unnecessarily limits a uniformed member's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a uniformed member of the service determines that the potential for serious physical injury is no longer present, the uniformed member of service will holster the firearm as soon as practicable.” NYPD Patrol Guide Procedure 221-01 (Board Review 11).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation E—Force: In the vicinity of § 87(2)(b) in Queens, Police Officer Angelo Santaniello pointed his gun at § 87(2)(b)

It is undisputed that PO Santaniello drew his gun while chasing after § 87(2)(b) on foot. It is also undisputed that PO Santaniello eventually caught up to him on the porch of § 87(2)(b). The TARU footage does not show this portion of the incident.

§ 87(2)(b) (**Board Review 04**) recounted that PO Santaniello pointed his gun at him while Sgt. Schiraldi was apprehending him on the steps of the porch.

PO Santaniello (**Board Review 06**) did not remember whether he ever pointed his gun at § 87(2)(b) whether he ever raised his gun above his waist after drawing it from its holster, or even where he pointed his gun at any point while it was unholstered. PO Santaniello re-holstered his gun as he reached the porch of § 87(2)(b) so that he could grab § 87(2)(b). Sgt. Schiraldi (**Board Review 05**) recounted that he never saw whether PO Santaniello ever drew his gun, let alone pointed it, because he was running ahead of him in pursuit of § 87(2)(b).

As described above, the independent eyewitness, § 87(2)(b) to provide a statement to the CCRB. The audio of § 87(2)(b)'s 911 call (**Board Review 09**, summarized at **Board Review 10**) depicts a male officer repeatedly yelling, apparently at § 87(2)(b) to get on the ground. Sgt. Schiraldi could not identify the voice. PO Santaniello believed the voice would have been either his own or Sgt. Schiraldi's, but he could not determine whose it was from listening to the audio recording. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation F—Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi used physical force against § 87(2)(b)

Allegation G—Force: In the vicinity of § 87(2)(b) in Queens, Police Officer Angelo Santaniello used physical force against § 87(2)(b)

Allegation H—Force: In the vicinity of § 87(2)(b) in Queens, Sergeant Matthew Schiraldi used physical force against § 87(2)(b)

Allegation I—Force: In the vicinity of § 87(2)(b) in Queens, an officer used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) repeatedly tried, unsuccessfully, to enter the residence at § 87(2)(b) to escape the officers. It is also undisputed that Sgt. Schiraldi and PO Santaniello took § 87(2)(b) to the ground while apprehending him on the porch. The TARU footage does not capture this part of the incident.

§ 87(2)(b) (**Board Review 04**) recounted that Sgt. Schiraldi tackled him to the ground and kned him in the head, striking his temple two to three times, while both officers yelled at him to stop resisting. § 87(2)(b) was not doing anything with his body and had already surrendered. An § 87(2)(b) did not know who it was and could not describe the officer at all—pushed § 87(2)(b)'s face into the ground, causing minor scrapes and redness to his face. § 87(2)(b) alleged no other injuries. § 87(2)(b) requested medical treatment for the first time at Queens Central Booking and went to the hospital.

The IAB log (**Board Review 18**, see pg. 3) notes that § 87(2)(b) had two small lacerations on his left cheek and an abrasion to his left knee, and that the only injury § 87(2)(b) complained about was the knee abrasion. Per the IAB log, § 87(2)(b) was diagnosed with a soft tissue abrasion to his left knee and a small laceration to the cheek. Photographs of § 87(2)(b)'s face and knee

(**Board Review 19–20**) at the hospital show only minor knee abrasions and do not depict any apparent abrasions or lacerations to his left cheek.

The CCRB was unable to obtain § 87(2)(b)'s medical records due to delays in obtaining his signed HIPAA forms from prison and the COVID-19 global pandemic. § 87(2)(b), § 87(2)(g)

Sgt. Schiraldi and PO Santaniello (**Board Review 05–06**) § 87(2)(b), § 87(2)(g)

They agreed that Sgt. Schiraldi was the first one out of their SUV as they transitioned to chasing § 87(2)(b) on foot. They also both denied that any officer kned § 87(2)(b) in the head or pressed his face into the ground. Their testimony diverged, however, regarding which of them first touched § 87(2)(b) at the conclusion of the foot pursuit. Sgt. Schiraldi recounted that he touched § 87(2)(b) first by grabbing his arms. Sgt. Schiraldi wrapped his arms around § 87(2)(b)'s waist and brought him to the ground. PO Santaniello, on the other hand, recounted that he touched § 87(2)(b) first by grabbing his arm and pulling him away from the front door so that he could not get inside. Sgt. Schiraldi grabbed § 87(2)(b)'s waist and held onto § 87(2)(b) who was still trying to get inside of the house.

As described above, the independent eyewitness, § 87(2)(b) to provide a statement to the CCRB. Beginning at 03:00 in the audio of § 87(2)(b)'s 911 call (**Board Review 09**, summarized at **Board Review 10**), a male officer repeatedly yells, apparently at § 87(2)(b) to get on the ground. The officers could not identify which of their voices this was. Later in the audio, § 87(2)(b) calls out to someone—referring to him only as “§ 87(2)(b)” —and tells him to listen. A voice in the background says to stop resisting, and § 87(2)(b) says “Yo, § 87(2)(b) don't resist.”

NYPD Patrol Guide Procedure 221-01 (**Board Review 11**) permits the use of force “when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.”

§ 87(2)(b), § 87(2)(g)

Allegation J—Discourtesy: At the 100th Precinct stationhouse in Queens, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) (**Board Review 04**) recounted that a skinny, white male officer in plainclothes approached him in the holding cells and asked him questions about a 2017 shooting in which he was a victim. § 87(2)(b) claimed not to know the information the officer was seeking. The officer told § 87(2)(b) that he was a “piece of shit.” This officer was not PO Santaniello or Sgt. Schiraldi. § 87(2)(b) could not provide any further identifying or descriptive information about this officer. § 87(2)(b) did not describe any officer present for this interaction as having a stocky or heavysset build. § 87(2)(b) was unable to estimate the time at which this conversation happened or even place it within a general time frame after his arrival at the stationhouse. § 87(2)(b) also could not reliably gauge his total time in NYPD custody; he estimated that he was only at the stationhouse for one to two hours, but his arraignment tracking form (**Board Review 21**) shows that he was there for approximately seven hours.

By the time § 87(2)(b) first raised this allegation during his phone interview in February 2020, any relevant stationhouse footage had already expired.

CCRB Case # 201900201

§ 87(2)(b), § 87(2)(g)

As § 87(2)(b)'s arresting officer, PO Santaniello was primarily responsible for his arrest processing. PO Santaniello did some of this processing in the stationhouse's "Crime Office," which is on a different floor than the regular holding cells. PO Santaniello and Sgt. Schiraldi both denied hearing any officer call § 87(2)(b) a "piece of shit" or otherwise use profanity with him at the stationhouse. PO Santaniello was not aware of any plainclothes officers besides himself interacting with § 87(2)(b) in the holding cell area, nor was he aware of any plainclothes officers asking § 87(2)(b) about the 2017 shooting.

PO Andrew Ronan (**Board Review 22**) testified that he was working in plainclothes on the incident date and began his tour working on the same Anti-Crime team as PO Santaniello and Sgt. Schiraldi. However, PO Ronan took leave and ended his shift more than two hours before § 87(2)(b)'s arrest.

PO Santaniello's memo book (**Board Review 23**) notes that Det. Fink debriefed § 87(2)(b) at the stationhouse. The investigation obtained the audio recording of Det. Fink's interrogation of § 87(2)(b) (**Board Review 24**), which took place in the stationhouse's Detective Squad offices separate from the holding cells. The interrogation audio lasts several minutes and only depicts § 87(2)(b) requesting a lawyer and refusing to talk to Det. Fink. The audio does not depict anyone using any profanity during the recording, nor does it depict any conversation about the 2017 shooting. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the only CCRB complaint in which § 87(2)(b) has been a party (**Board Review 26**).
- Sgt. Schiraldi has been a member of service for 13 years and has been a subject of six allegations in six CCRB complaints, none of which was substantiated. § 87(2)(g)
- PO Santaniello has been a member of service for six years. This is the only CRB complaint in which he has been named a subject.
- § 87(2)(b), § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of November 5, 2020, the NYC Comptroller's Office has no record of any Notice of Claim filed regarding this incident (**Board Review 28**).
- According to the Office of Court Administration (OCA), between June 18, 2019, and July 11, 2019, § 87(2)(b) was § 87(2)(b) of second-degree criminal possession of a weapon, second-degree reckless endangerment, and a probation violation, § 87(2)(b) (**Board Review 17**).

CCRB Case # 201900201

- § 87(2)(b) s criminal charges from this incident resolved when he § 87(2)(b) on § 87(2)(b) to second-degree criminal possession of a weapon. § 87(2)(b) § 87(2)(b).
-

Squad No.: #05

Investigator:	<u>Conor Seamus O'Shea</u>	<u>Investigator Conor O'Shea</u>	<u>November 18, 2020</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>November 18, 2020</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date